

State and territory governments are responsible for animal production and welfare laws and their enforcement. The states and territories set and enforce animal welfare standards through administration of state legislation for animal welfare or the prevention of animal cruelty.

For Australia's livestock industries, the [Model Codes of Practice for the Welfare of Animals](#) (Model Codes) establish an agreed set of principles and practices. The Model Codes were endorsed by the then Primary Industries Ministerial Council. The Model Codes serve as voluntary guides for people responsible for the welfare and husbandry of a range of livestock animals.

Work is now underway to update the Model Codes and convert them into Australian [Animal Welfare Standards and Guidelines](#). The new documents will incorporate both national welfare standards and industry guidelines for each species or enterprise. Animal welfare standards endorsed by all state and territory primary industry ministers are designed to be implemented in state and territory legislation.

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Legislation

Under the Australian constitution, legislative responsibility for animal welfare within Australia rests primarily with [state and territory governments](#). All states and territories have contemporary and comprehensive animal welfare legislation in place.

Local governments have legislation relating to the management of companion animals.

The Australian Government has responsibility for trade and international agreements. This legislation covers the welfare of animals involved in the live animal export trade and animals processed at export-registered slaughter establishments.

It also has overall responsibility for:

- the welfare of kangaroos killed for commercial purposes (State Management Plans are approved by the Australian Government Department of Environment and Energy)
- the conduct of introduced animal management under the Department of Environment and Energy National Threat Abatement Plans and
- animal welfare aspects of wild animal management and animal research on Australian Government lands.

The Australian Government is also responsible for providing input to international negotiations on animal welfare and the development of international standards. It negotiates treaties (e.g. the Convention on International Trade in Endangered Species of Wild Fauna and Flora - CITES) and ensures compliance with those treaties it signs.

Protection of Australia's environment is important for all Australians and for the welfare of our unique and diverse native wildlife.

Animal welfare roles and responsibilities

All people who have animals in their care have a responsibility to ensure that they have adequate knowledge, training and skills to apply in the protection of the welfare of animals. These people have an enduring obligation to seek expert assistance where necessary to ensure the welfare of animals.

Individual owners

Individual owners and users of animals have a responsibility to fulfil a duty of care for animals in their charge and as members of the community, be responsible for the welfare of those animals.

This duty of care includes:

- understanding, supporting, promoting and applying animal welfare best practice that is contained in relevant legislation, codes of practice, guidelines and quality assurance programs
- ensuring that their animals do not impact adversely on other animals.

Animal industry groups

Industry groups have a responsibility to:

- represent their members' interests and responsibilities on animal welfare issues in relevant forums in an appropriate way
- provide their members with factual information on animal care and welfare and encourage the adoption of best practice, national codes and standards
- participate in the development of codes, policies and programs aimed at maintaining sustainable animal welfare outcomes in Australia
- sponsor or undertake research or information gathering to advance knowledge of animal welfare and application of that knowledge.

Community animal welfare groups

These groups have a responsibility to:

- raise awareness of animal welfare issues and promote responsibility towards the welfare of animals
- represent their members' interests and community responsibilities on animal welfare issues in relevant forums
- provide their members and the community with factual information on animal care and welfare and encourage the adoption of best practice
- participate in the development of codes, policies and programs aimed at maintaining high standards of sustainable animal welfare in Australia
- sponsor legal and legitimate information gathering to advance knowledge of animal welfare, and application of that knowledge

- delivering the enforcement of animal welfare legislation, through inspectors authorised by governments.

Governments' responsibility

Australia has three tiers of government, each of which may have animal welfare responsibilities although these vary between jurisdictions.

Under the Australia Constitution, states and territories have the primary jurisdiction for animal welfare within Australia. This includes:

- preparing and enforcing animal welfare legislation
- providing suitable institutional and legislative frameworks, appropriate policies and programs, and promoting and making these readily accessible to the public.

The Australian Government has specific powers in relation to external trade and treaties that encompasses some animal welfare issues. These include:

- representing Australia's position on animal welfare
- providing legislation with regard to the import and export of animals and animal products, and promoting these to the public.

State, territory and Australian governments also have a responsibility to:

- work toward consistency of approach in state and territory legislation
- identify, encourage and resource appropriate scientific research activities to provide scientific understanding of animal welfare issues that will underpin developments in the implementation of improved and sustainable animal welfare
- enforce agreed animal welfare standards and encourage best animal husbandry practices
- contribute to the development of animal welfare strategies across local, regional and state levels
- facilitate consultation with all stakeholders on animal welfare issues and the ongoing development and revision of acceptable animal welfare outcomes through legislation, codes of practice, standards and quality assurance programs that are based on sound scientific evidence.

Local governments have responsibility for some areas of domestic animal control, and public health that has a significant impact on animal welfare. This includes the provision of feedback to state and territory governments in order to change legislation, and for the promotion and maintenance of responsible animal ownership.

Research and development

Research and development corporations, governments, universities and non-government organisations in Australia are all contributing to a growing body of research understanding, assessing and improving farm animal welfare. The [National Animal Welfare Research Development and Extension Strategy](#) encourages collaboration on this research.

Source: <https://www.agriculture.gov.au/agriculture-land/animal/welfare/animal-welfare-in-australia>